

The Air (Prevention And Control Of Pollution) (Union Territories) Rules, 1983

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[Rule THE-AIR-PREVENTION-AND-CONTROL-OF-POLLUTION-UNION-TERRITORIES-RULES-1983 of 1983](#)

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[The Air \(Prevention And Control Of Pollution\) \(Union Territories\) Rules, 1983](#)

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[249.](#)

[In exercise of the powers conferred by section 54 of the Air \(Prevention and Control of Pollution\) Act, 1981 \(14 of 1981](#)

[\), the Central Government, in consultation with the Central Board for the Prevention and Control of Water Pollution, hereby makes the following rules, namely:-](#)

[Chapter I](#)

Preliminary

1.

Short title, application and commencement .-(1) These rules may be called The Air (Prevention and Control of Pollution) (Union Territories) Rules, 1983.

(2)

They shall apply to the Union Territories of Delhi, Pondicherry, Goa, Daman and Diu, Dadra and Nagar Haveli, Lakshadweep, Mizoram, Andaman and Nicobar Islands, Arunachal Pradesh and Chandigarh.

(3)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions .-In these rules, unless the context otherwise requires,-

(a)

"Act" means the Air (Prevention and Control of Pollution) Act, 1981 (14 of 1981

);

(b)

"appellant" means any person aggrieved by and appealing against an order made by the Board;

(c)

"Appellate Authority" means an Appellate Authority constituted by the Central Government under sub-section (1) of section 31 of the Act;

(d)

"Board" means the Central Board for the Prevention and Control of Water Pollution constituted under section 3 of the Water (Prevention and Control of Pollution) Act, 1974 (6 of 1974

);

(e)

"Chairman" means a Chairman of the Board;

(f)

"consultant" means any person appointed as such under sub-section (5) of section 14;

(g)

"Form" means a form appended to these rules;

(h)

"premises" means any building structure or land used for industrial or commercial purposes where pollution occurs;

(i)

"State Air Laboratory", in relation to a Union Territory, means a laboratory established or specified as such by the Central Government under sub-section (1) of section 28;

(j)

"section" means any section of the Act;

(k)

"Board Laboratory" means a laboratory established or recognised as such under sub-section (2) of section 17;

(l)

words and expressions used but not defined in these rules and defined in the Act shall have the meaning respectively assigned to them in the Act.

Chapter II

Consultants

3.

Appointment of consultants .-For the purpose of assisting the Board in the performance of its functions, the Chairman may appoint any qualified person to be a consultant for a specific period not exceeding six months:

Provided that the Chairman may, with the prior approval of the Board extend the period of the appointment from time to time upto one year:

Provided further that the Chairman may, with the prior approval of the Board and the Central Government, appoint a

consultant for a period beyond one year.

4.

Power to terminate appointment .-Notwithstanding anything contained in rule 3, the Board shall have the right to terminate the appointment of the consultant before the expiry of the specific period for which he is appointed, if in the opinion of the Board, the consultant is not discharging his duties properly or to the satisfaction of the Board, or such a course of action is necessary in the public interest:

Provided that in cases where a consultant has been appointed with the prior approval of the Central Government, the termination of his appointment will be made only with the approval of the Central Government.

5.

[Emoluments of consultant

.-The Board may pay the consultants suitable emoluments or fees depending on the nature of work and the qualification and experience of the consultant:

Provided that the Chairman shall not appoint any person as consultant without the prior approval of the Central Government if the Board recommends that the total emoluments or fee payable exceeds rupees five thousand per month:

Provided further that if a retired Government Officer is appointed as consultant his emoluments or fee shall be regulated in accordance with the instructions/orders issued by the Central Government in the Ministry of Personnel, Public Grievances and Pensions (Department of Personnel and Training) from time to time.]

6.

Tours by consultant .-The consultant may with the prior approval of the Chairman undertake tours within the country for the performance of the duties entrusted to him by the Board and in respect of such tours he shall be entitled to travelling and daily allowances at the rate payable to a Grade I officer of the Central Government.

7.

Consultant not to disclose information .-The consultant shall not, without the written permission of the Board, disclose any information either given by the Board or obtained during the performance of the duties assigned to him either by the Board or otherwise to any person other than the Board.

Chapter III

Notification Of Air Pollution Control Area

8.

Manner of declaration of air pollution control area .-(1) Every notification under sub-section (1) of section 19, declaring any area within any Union territory as air pollution control area, shall specify:-

(a)

the boundaries of the area if the area is not a whole district or the whole Union territory;

(b)

the date on which such declaration shall come into force.

(2)

A notification referred to in sub-rule (1) shall be published in the Official Gazette and at least in one English and one vernacular daily newspapers having a circulation not less than five thousand in the Union territories.

Chapter IV

Application For Consent

9.

Form of application for consent and fees .-(1) Every application for consent under sub-section (2) of section 21 shall be made in Form I and shall be accompanied by fees as specified below:-

Industries having paid up capital

Fees Rs.

(i) Not exceeding Rs. 5,00,000

250

(ii) Exceeding Rs. 5,00,000 but not exceeding Rs. 20,00,000

500

(iii) Exceeding Rs. 20,00,000 but not exceeding Rs. 1 crore

1000

(iv) Exceeding Rs. 1 crore

2000

(2)

Every application for consent under the proviso to sub-section (2) of section 21 shall be made within four months from the date of declaration of any area as air pollution control area.

10.

Procedure for making enquiry on application seeking consent .-(1) On receipt of an application for consent, the Board may depute any of its officers, accompanied by as many assistants as may be necessary, to visit and inspect any place or premises under the control of the applicant or the occupier, for verifying the correctness or otherwise of the particulars furnished in the application or for obtaining such further particulars or information, which in the opinion of such officer are essential. Such officer, for that purpose, may inspect any place or premises where solid, liquid or gaseous emission from the chimney or fugitive emissions from any location within the premises are discharged. Such officer may require the applicant or the occupier to furnish to him any plans, specifications or other data relating to control equipment or systems or any part thereof that he considers necessary.

(2)

The officer referred to in sub-rule (1) shall, before visiting any of the premises of the applicant, give notice to the applicant of his intention to do so in Form II. The applicant shall furnish to such officer all information and provide all facilities for inspection.

(3)

The officer may, before or after carrying out the inspection under sub-rule (1), require the applicant to furnish him orally or in writing such additional information or clarification or to produce before him such document as he may consider necessary for the purpose of investigation of the application and may for that purpose summon the applicant or his authorised agent to the office of the Board.

Chapter V

Authorities To Whom Information Is To Be Furnished

11.

Furnishing of information by the occupier .-The authorities referred to in sub-section (1) of section 23 shall be the Collector of the District, the Revenue Divisional Officer, the Health Officer, the Executive Authority of the municipal or local body concerned and the nearest police station.

Chapter VI

Manner Of Taking Samples

12.

Manner of taking samples .-(1) The person incharge of the premises shall provide port-holes, platforms conveniently located, for easy access and all other facilities required for taking sample of air or emission from any chimney, flue or duct, plant or vessel or any other sources and outlets, stationary or mobile as may be required by the Board or any officer empowered by the Board in this behalf.

(2)

The procedure for taking samples shall be such as may be felt necessary by the Board or any officer empowered by the Board in this behalf to suit the situation.

13.

Form of notice .-Every notice under sub-section (3) of section 26 shall be in Form III.

Chapter VII

Report Of Analysis

14.

Form of report of the Board analyst and Government analyst .-(1) When a sample of any air or emission has been sent for analysis to the Board Laboratory, the Board analyst shall analyse such sample and submit to the Board a report of the result of such analysis in Form IV in triplicate.

(2)

When a sample of any air or emission has been sent for analysis to the State Air Laboratory, the Government Analyst shall analyse such samples and submit to the Board a report of the result of such analysis in Form V in triplicate.

Chapter VIII

State Air Laboratory

15.

Functions of the State Air Laboratory and fee for report .-The State Air Laboratory established by the Central Government for a Union territory shall cause to be analysed by the Government Analyst any sample of air or emission received by it from any officer authorised by the Board for the purpose and shall be entitled to collect a fee for Rs. 200 for each of the report.

16.

Qualification of the Government Analyst or Board Analyst .-A person to be appointed as Government Analyst or Board Analyst shall hold at least a Second Class Master's Degree in Basic Science or Life Science and 3 years experience in environmental quality management.

17.

Form of appeal and manner of preference .-(1) Every appeal under section 31 against an order passed by the Board shall be filed by the appellant in Form VII.

(2)

Every appellant shall prefer appeal separately in his own name and no joint appeal made on behalf of more than one appellant shall be entertained by the Appellate Authority.

(3)

(a)

Every appeal shall-

(i)

be in writing,

(ii)

specify the name and address of the appellant and the date of the order appealed against,

(iii)

specify the date on which the order appealed against was communicated to the appellant,

(iv)

contain a statement of facts of the case and grounds relied upon by the appellant in support of the appeal,

(v)

state the relief prayed for, and

(vi)

be signed and verified by the appellant or an agent duly authorised by him in writing in this behalf.

(b)

Every appeal shall be accompanied by,-

(i)

an authenticated copy of the order against which appeal is made,

(ii)

a copy of the application made under section 21,

(iii)

any document relating to the appeal, and

(iv)

a satisfactory proof of the payment of fees specified in clause (c).

(c)

A fee of Rs. 50 shall be deposited by every appellant in the office of the Appellate Authority and an authenticated copy of the receipt obtained thereof shall be annexed to every appeal.

(d)

Every appeal shall be submitted in quadruplicate to the Appellate Authority by the appellant or his authorised agent in person or sent to such Authority by registered post. When the appeal is presented by an agent duly authorised by the appellant, it shall be accompanied by a letter of authority written on a stamped paper of the value as required by law, appointing him as such an agent.

(e)

On receipt of the appeal, the Appellate Authority shall endorse thereon the date of its presentation or receipt by post and

the name of the appellant or his duly authorised agent presenting it, as the case may be.

18.

Procedure to be followed by the Appellate Authority in dealing with and disposal of the appeal .-(1) The Appellate Authority shall, as soon as may be after the appeal is filed before it, fix a date for hearing of the appeal and give notice of the same to the appellant and the Board in Form VIII. While giving such notice to the Board, a copy of the appeal, together with its enclosures, shall also be sent to the Board and he shall be called upon to send to the Appellate Authority, all the relevant records connected with the appeal.

(2)

Where the material on record is insufficient to enable the Appellate Authority to come to a definite decision, it may take additional evidence and call for such further material from the appellant or the Board as it deems fit. Such material shall form part of the record only after the party other than that the one from whom such record has been received, has been given an opportunity to pursue the same.

(3)

Where on the date fixed for hearing or any date to which the hearing of the appeal may be adjourned, the appellant or his duly authorised agent does not appear when the appeal is called for hearing, the appeal shall be liable to be dismissed.

(4)

Where an appeal is dismissed under sub-rule (3), the appellant may, within thirty days from the dismissal, apply to the Appellate Authority for the restoration of the appeal and if it is shown to the satisfaction of the Appellate Authority that the appellant had not received intimation of the date of hearing appeal or was prevented by any cause, sufficient in the opinion of the Appellate Authority, from appearing when the appeal was called for hearing, the Appellate Authority may restore the appeal on such terms as it thinks fit.

(5)

The order passed by the Appellate Authority on the appeal shall be in writing bearing the seal of the Appellate Authority and shall state the points before it for determination, the decision thereon, and the reasons for the decision.

(6)

A copy of the order passed in appeal shall be supplied by the Appellate Authority free of cost to the appellant and a copy thereof shall also be sent to the Board.

19.

Consent register .-The Board shall maintain a register in Form VI containing particulars of industrial plants to which consent have been granted under section 21.

20.

Functions to be performed by the Board .-In addition to the functions specified in sub-section (1) of section 17, the Board shall conduct-

(a)

research and development work on the effect of air pollution on the environment, living and non-living,

(b)

performance studies on pollution control equipment to improve their efficiency for the purpose of enhancement of air quality, and

(c)

studies to determine the effect of air pollutant on the health of the people.

[CHAPTER IX

20.

-A. Directions .-(1) Any direction issued under section 31-A shall be in writing.

(2)

The direction shall specify the nature of action to be taken and the time within which it shall be complied with by the person, officer or the authority to whom such direction is given.

(3)

The person, officer or an authority to whom any direction is sought to be issued, shall be served, with a copy of the proposed direction, and shall be given an opportunity of not less than 15 days from the date of service of a notice to file with an officer designated in this behalf the objections, if any, to the issue of the proposed direction.

(4)

Where the proposed direction is for the stoppage or regulation of electricity or water or any other service affecting the carrying on of any industry, operation or process and is sought to be issued to an officer or an authority, a copy of the proposed direction shall also be endorsed to the occupier of the industry, operation or process as the case may be, and objections if any, filed by the occupier with an officer designated now in this behalf shall be dealt with in accordance with the procedure under sub-rules (3) and (5) of this rule.

(5)

The Central Pollution Control Board shall within a period of 45 days from the date of receipt of the objections, if any, or from the date up to which an opportunity is given to the person, officer or authority to file objections, whichever is earlier, after considering the objections, if any received from the person, officer or authority sought to be directed and for reasons to be recorded in writing, confirm, modify or decide not to issue the proposed direction.

(6)

In a case where the Central Pollution Control Board is of the opinion that in view of the likelihood of a grave injury to the environment it is not expedient to provide an opportunity to file objections against the proposed direction, it may be reasons to be recorded in writing, issue directions without providing such an opportunity.

(7)

Every notice or direction required to be issued under this rule shall be deemed to be duly served-

(a)

Where the person to be served is a Company, if the document is addressed in the name of the Company at its registered office or at its principal office or place of business and is either-

(i)

sent by registered post, or

(ii)

delivered at its registered office or at the principal office or place of business;

(b)

Where the person to be served is an officer serving Government, if the document is addressed to be person and a copy thereof is endorsed to the Head of the Department and also to the Secretary to the Government, as the case may be, incharge of the Department in which, for the time being, the business relating to the Department in which the officer is employed is transacted, and is either-

(i)

sent by registered post, or

(ii)

is given or tendered to him;

(c)

in any other case, if the document is addressed to the person to be served and-

(i)

is given or tendered to him, or

(ii)

if such person cannot be found, is affixed on some conspicuous part of his last known place of residence or business or is given or tendered to some adult member of his family or is affixed on some conspicuous part of the land, or building, if any, to which it relates, or

(iii)

is sent by registered post to that person.

Explanation .-For the purposes of this sub-rule-

(a)

"company" means any body corporate and includes a firm or other association of individuals;

(b)

"a servant" is not a member of the family.

20.

-B. Manner of giving notice .-The manner of giving notice under clause (b) of sub-section (1) of section 43 shall be as follows, namely:-

(i)

The notice shall be in writing in Form IX;

(ii)

The person giving notice may send it to-

(a)

Board and (b) Ministry of Environment and Forests (represented by the Secretary, Government of India);

(iii)

Notice shall be sent by registered post acknowledgement due; and

(iv)

Period of sixty days mentioned in clause (b) of sub-section (1) of section 43 shall be reckoned from the date of its first receipt by one of the authorities mentioned above.]

21.

Repeal and saving .-All rules corresponding to these rules and in force in a Union territory immediately before the commencement of these rules are hereby repealed:

Provided that any order made or action taken under the rules so repealed shall be deemed to have been made or taken under the corresponding provision of these rules.

[FORM I]

(See rule 9)

Application For Consent For Emission/continuation Of Emission Under Section 21 Of The Air (Prevention And Control Of Pollution) Act, 1981.

From _____

To

The Member Secretary,
Central Pollution Control Board,

Sir,

I/We hereby apply for Consent/Renewal of Consent under Section 21 of the Air (Prevention and Control of Pollution) Act, 1981 (

14 of 1981

) to bring into use a new/altered

[Strike out which is not relevant.]

stack for the discharge of emission/to begin to make new discharge of emission/to continue to discharge emission

[Strike out which is not relevant.]

from stack in industry owned by

For Office Use Only

1. Code No. | -

2. Whether the unit is situated in a critically polluted area as identified by Ministry of Environment & Forests | -

To be filled in by Applicant

Part A-General

3 (a) Name of Owner/Occupier | -

(b) Name and address of the unit and location | -

4 (a) Whether the unit is generating hazardous waste as defined in the Hazardous Wastes (Management and Handling) Rules, 1989 | -

(b) If so the category No. | -

5 (a) Total capital invested on the project | -

(b) Year of commencement of production | -

(c) Whether the industry works general/2 shifts/round the clock | -

6 (a) List and quantum of products and bye-products | -

(b) List and quantum of raw materials used| |-

7. Furnish a flow diagram of manufacturing process showing input and output in terms of products and waste generated including for captive power generation and dematerialized water| |-

PART B-Pertaining to sewage and trade effluent

8. Quantity and source of water for:| |-

(a) Cooling m³/d| |-

(b) Process m³/d| |-

(c) Domestic use m³/d| |-

(d) Others m³/d| |-

9. Sewage and trade effluent discharge| |-

(a) quantum of discharge m³/d| |-

(b) Is there any effluent treatment plant| |-

(c) If yes, a brief description of unit operations with capacity| |-

(d) Characteristics of final effluent pH| |-

Suspended solids| |-

Dissolved solids| |-

Chemical Oxygen Demand (COD)| |-

Biochemical Oxygen Demand (BOD)/20°C| |-

Oil and grease| |-

(Additional parameters as specified by the concerned Pollution Control Board)| |-

(e) Mode of disposal and final discharge point (enclose .map showing discharge point)| |-

(f) Parameters and Frequency of self-monitoring| |-

PART C-Pertaining to stack and vent emissions

10 (a) Number of stacks and vents with height and dia (m)| |-

(b) Quality and quantity of stack emission from each of the above stacks-particulate matter t and Sulphur Dioxide (SO₂) (Additional parameters as specified by the concerned Pollution Control Board)| |-

(c) A brief account of the air pollution control unit to deal with the emission| |-

(d) Parameters and Frequency of self monitoring| |-

PART D-Pertaining to hazardous waste and hazardous chemicals.

11 Solid wastes:| |-

(a) Total quantum of generation| |-

(b) Quantum of hazardous waste generated and its nature, as defined under the Environment (Protection) Act, 1986. (See the Hazardous Wastes Management and Handling Rules, 1989).| |-

(c) Mode of storage within the plant, method of disposal and any other information sought by the concerned Pollution Control Board| |-

12 (a) Hazardous Chemicals as defined under Environment (Protection) Act, 1986(See the Manufacture, Storage and Import of Hazardous Chemicals Rules, 1989)| |-

(b) Whether any isolated storage is involved if yes, attach details| Yes/No

(c) Whether emergency plans are prepared for taking|

-on-site measures| Yes/No

-off-site measures| Yes/No

I/We enclose herewith Receipt No. Bank Draft No Dated for Rs (Rupees) in favour of the Central Pollution Control Board, New Delhi towards the fees payable under Section 25 of the Act.

Yours faithfully,

Name and Signature of applicant

Notes :- 1. Any applicant knowingly giving incorrect information or suppressing any information pertaining thereto shall be liable to be punished under the Act.

FORM II

Central Board For The Prevention And Control Of Water Pollution

[See rule 10(2)]

NOTICE OF INSPECTION

Chairman| Member Secretary

.....|-

| Shri.....|-

| No.|-

| Dated|-

|

To

.....

.....

Take Notice that for the purpose of enquiry under section 21 the following officers of the Central Board namely:-

(i)

Shri

(ii)

Shri

(iii)

Shri

and the persons authorised by the Board to assist them shall inspect-

Any systems of your Industrial Plant.

Any other parts thereof or pertaining thereto under management/control of date (a)
between Hours when all facilities requested by them for such inspection should be
made available to them on the site. Take Notice that refusal or denial to above stated demand made under the functions
of the Central Board shall amount to obstruction punishable under section 37(1) of the Act.

By order of the Board

Member Secretary

Copy to :

1.

2.

3.

FORM III

Central Board For The Prevention And Control Of Water Pollution

(See rule 13)

NOTICE OF INTENTION TO HAVE SAMPLE ANALYSED

To

Take notice that it is intended to have analysed the sample of Air emission from your promises which is being taken
today the day of 1. 20..... from (i)

Name and designation of the person who takes the sample

(i)

Here specify the stack, Chimney or any other emission outlets.

To

.....

.....

.....

FORM IV

Central Board For The Prevention And Control Of Water Pollution

(See rule 14)

REPORT BY THE CENTRAL BOARD ANALYST

Report No.

Dated the

I hereby certify that I,

[Here write the full name of the Central Board analyst.]

Central Board analyst duly appointed under sub-section 3 of section 26 of the Air (Prevention and Control of Pollution)

Act 1981, received on the

[Here write the date of receipt of the sample.]

day of 19..... from

[Here write the name of the Board or person or body of persons or officer from whom the sample was received.]

a sample of for analysis. The sample was in a condition fit for analysis reported below.

I further certify that I have analysed the aforementioned sample on

[Here write the date of analysis.]

and declare the result of the analysis to be as follows:-

.....
.....
.....

[Here write the details of the analysis and refer to the method of analysis. If the space is not adequate the details may be given on a separate sheet of paper.]

The condition of the seals, fastening and container on receipt was as follows:-

.....

..... Signed this

..... day of 19.....

(Signature)

Central Board Analyst

To

.....
.....
.....

FORM V

Report By The Government Analyst

[See rule 14(2)]

Report No.....

Dated the.....

I hereby certify that I,

[Here write the full name of the Central Board analyst.]

Government analyst duly appointed under sub-section 1 of section 27 of the Air (Prevention and Control of Pollution) Act 1981, received on the

[Here write the date of receipt of the sample.]

day of 20..... from a sample of

[Here write the name of the Board or person or body or persons or officer from whom the sample was received.]

for analysis. The sample was in a condition fit for analysis reported below.

I further certify that I have analysed the aforementioned sample on

[Here write the date of analysis.]

and declare the result of the analysis to be as follows:-

.....
.....

[Here write the details of the analysis and refer to the method of analysis. If the space is not adequate the details may be given on a separate sheet of paper.]

Signed this day of 20.....

(Signature)

(Government Analyst)

Address.....

.....
.....
.....

To

.....
.....

FORM VI

Central Board For The Prevention And Control Of Water Pollution

(See rule 19)

(Form of consent register)

I. General:

(a)

Consent is issued to:

.....

(Corporation, Company, Government Agency, Firm etc.)

.....

(b)

Postal

Address

.....

.....

II. Location of plant or facilities: (Latitude and longitude must be to the nearest of 15 seconds)

(a)

Nearest City District

(b)

Latitude Longitude

(c)

Is it located in air pollution control area-Yes/No.

If yes, Identification of air pollution control area.

III. Type of operation or process:

(a)

Name of operation or process

(b)

Schedule identification number

IV.

Consent classification:

Yes

No

(a) Proposed

(b) Now operating

(c) Modification of existing emission source

(d) Location change

(e) Ownership change

(f) Present-consent order Number itany

.....

V.

Implementation Dates:

(a) In the case of proposed industries Operation expected to begin

-

-

-

(day)

(month)

(year)

(b) air pollution control equipment and emission to be installed standards achieved by

-

-

-

(day)

(month)

(year)

VI.

Emission Standards:

Emission source Number (from plot plan)

Air Pollutant emitted

Emission rate kg/hour or standard/see

1

2

3

VII.

Consent conditions if any:

FORM VII

[See sub-rule (1) of rule 17]

Form Of Appeal

(Here mention the name & designation of the authority)

[Strike out which is not applicable.]

Before

[Strike out which is not applicable.]

Appellate Authority constituted under section 31 of the Air (Prevention & Control of Pollution) Act, 1981(14 of 1981).

Memorandum of appeal of Shri

(Appellant)

V.

The Central Pollution Control Board (Respondent) The appeal of Shri Resident of
..... District

..... against the order dated
..... passed by the Central Pollution Control Board under section 21/22 of
the Air (Prevention and Control of Pollution) Act, 1981 as showeth follows :-

(1)

Under Section 21/22 of the Air (Prevention & Control of Pollution) Act 1981 (
14 of 1981

) the appellant has been granted consent subject to the conditions mentioned in the consent order in respect of the
..... company/corporation/municipality/notified area committee
etc., noted below :-

(a)

Name of the plant/company/corporation/municipality/notified area committee:

(b)

Place:

(c)

Card No.

(d)

Name of the street; and

(e)

District

A copy of the consea order in question is attached here to.

(2)

The facts of the case are as under:

(here briefly mention the facts of the case)

(3)

The grounds on which the appellant relies the purpose of this appeal are as below:-

(here mention the grounds on which appeal is made)

1.

2.

3.

(4)

In the light of what is stated above, the appellant respectfully prayeth that-

(a)

the unreasonable condition(s) imposed should be treated as annulled or it/they should be constituted for such other conditions is it appears to be reasonable.

or

(b)

the unreasonable condition(s) should be varied in the following manner

(Here mention the manner in which the condition(s) objected).

An amount of Rs as fee for this appeal has been paid vide receipt No dated an authorised copy of which is attached in proof of payment.

Signature of the Applicant

Name

(in Block letters)

Occupation

Address

.....

Date:

Verification

I (appellant's name) in the above Memorandum of appeal/or/duly authorised agent do/does hereby declare that what it stated therein is true to the best of my knowledge and belief and nothing has been hidden thereunder.

Signature

Name

(in Block letters)

Occupation

Address

.....

Dated :

FORM VIII

[See rule 18(1)]

Form Of Notice

(Here mention name & designation of the Authority)

[Substituted by Act 47 of 1987, Section 2, for]

Before

[Substituted by Act 47 of 1987, Section 2, for "Central Board for the Prevention and Control of Water Pollution.]

Appellate Authority as constituted under Section 31(1) of the Air (Prevention & Control of Pollution) Act, 1981 (14 of 1981

).

In the matter of appeal No20..... filed under section 31 of the Air (Prevention & Control of Pollution) Act, 1981 (

14 of 1981

) by Shri(here mention the name and address of the appellant)

Whereas Shri..... (here mention the name and address of the appellant)

has filed before this Authority a Memorandum of appeal against the order dated passed

by the Central Pollution Control Board under Section 20/21/22 of the Act.

[Substituted by Act 47 of 1987, Section 2, for "Central Board for the Prevention and Control of Water Pollution."]

And whereas under sub-section (4) or Section 31 of the Act, this authority is required to give to the parties an opportunity of being heard. Now, Therefore, please take notice that this authority has fixed as date of hearing of the aforesaid appeal. The hearing shall take place at AM/PM on that date in the office of the Board at New Delhi. You are hereby called upon to appear before this Authority at the appointed time and date and place, either in person or through a duly authorised agent, and explain your case. Please take notice that failure on your part to appear on the day of hearing either in person or through authorised agent, without showing sufficient cause to the satisfaction of this Authority will make your appeal liable to be dismissed or decided ex-parte.

Given under the hand and seal of the Appellate Authority at This day

[FORM IX]

[Inserted by G.S.R. 350(E), dated 9-3-1989 (w.e.f. 10-3-1989) as amended by G.S.R. 741(E), dated 9-8-1989.]

(See rule 20-B)

Form Of Notice

By regd. post AD

From (1)

Shri

.....

.....

To

.....

.....

.....

Notice under Section 43(1)(b) of the Air (Prevention & Control of Pollution) Act, 1981.

Whereas an offence under the Air (Prevention & Control of Pollution) Act, 1981 has been committed/is being committed by (2)

I/we hereby give notice of 60 days under Section 43(1)(b) of the Air (Prevention & Control of Pollution) Act, 1981 of my/our intention to file a complaint in the court against (2) for violation of section(s) of the Air (Prevention & Control of Pollution) Act, 1981.

In support of my/our notice, I am/we are enclosing the following documents (3) as evidence of proof of violations of the Air (Prevention & Control of Pollution) Act, 1981.

.....

Signature(s)

Place

Date

Explanation :-

(1)

In case the notice is given in the name of a Company, documentary evidence authorising the person to sign the notice on behalf of the Company shall be enclosed to this notice. Company for this means a Company defined in explanation to Section 40 of the Air (Prevention & Control of Pollution) Act, 1981.

(2)

Here give the name and address of the alleged offender. In case of a manufacturing/processing/operating unit, indicate the name/location/nature of activity etc.

(3)

Documentary evidence shall include photographs/technical reports/health reports of the area etc. for enabling enquiry into the alleged violation/offence.

Related AI tags, queries and research notes

Translation